

MINUTES
of the
Rules & Policy Subcommittee Meeting - Continuation Meeting 4th

April 25, 2023
4:30pm - 6:00pm

The meeting is held through remote participation via Zoom and viewed through Medford Community Media on Comcast Channel 15 and Verizon Channel 45 at 4:30pm

MEMORANDUM & AGENDA

As approved by the Medford School Committee Meeting held **January 24, 2022 (2022-5)**: The Rules & Policy Subcommittee will review The Bullying Prevention and Intervention Plan for recommended updates.

This meeting is the 4th Continuation Meeting of the Rules & Policy Subcommittee Meetings held previously on December 06, 2022 (1st) and March 2, 2023 (2nd) and March 28, 2023 (3rd).

Attendance: Members Ruseau (Chair), Member Graham, Member McLaughlin

Roll Call: all-present 3/0

Central Administration: Dr. Marice Edouard-Vincent, Joan Bowen, Dr. Peter Cushing, Suzanne Galusi,, Principals and Assistant Principals: (unconfirmed) Nicholas Tucci, Paul D'Alleva, Michael Downs, Andrew O'Brien, Cheroise Walker, Kirk Johnson, Lisa Evangelista, Shannon Demos, Faralalli, M. Parker, Attorney Howard Greenspan.

Public Participants: unknown

AGENDA: Policy Prevention and Intervention Plan Review to update the plan and bring it into compliance to make it current and usable.

Last meeting take-aways:

Discussed questions for Attorney Greenspan, who will provide answers to questions and feedback on the Bullying Intervention and Prevention Policy document to make it more usable, bring it up to date and focus on areas needing to be changed.

Member Ruseau: screen shares the document. Points out that by law, the document needs to be updated every two years per regulations. For now the policy is for any student; it should say student or member of the school staff. Has highlighted words and added the data to another Google doc. Notes there is a lot of duplication.

Member McLaughlin: inquires into the comments on the right-hand side as being from Attorney Greenspan, who confirms they are.

Member Ruseau: continues: question for the administrative team.
Attorney Greenspan mentions several times "the educational component is not optional; it is mandatory" and asks if we have false accusations happening. When one does happen, it is required that there's an educational component to it. This is a comment - there is nothing to change in the document.

The law is this is only for students (the document). The suggestion is to remove staff members, because a student can make an anonymous complaint against a staff member and this says the school can't take disciplinary action. If the district does an investigation and decides it is valid, we can't have it in our policy that the district can do nothing about it.

Superintendent Edouard-Vincent: the district would conduct an investigation and take action in the event there is an anonymous complaint.

Member McLaughlin: it is a little unclear. We may want to break the statement down further as it's unclear why this is referenced repeatedly throughout the document.

Attorney Greenspan: asks if this policy will now only apply to students.

Member Ruseau: references the segment that speaks to false accusations. The second sentence is unrelated.

Attorney Greenspan: comments "no disciplinary action to be taken against a student on the basis of an anonymous report" No action will be taken against anybody based solely on an anonymous report.

Member Graham: seeks to clarify, 'only an allegation can be brought against a student or staff member?' under the law

Attorney Greenspan: confirms that under the law, we are talking about a bullying report 'student to student'.

Member McLaughlin: points to DESE standards that it can be a student or a staff member but not a parent, caregiver or community member outside of the school. There are some gray areas around social media. Can be a student and staff member based on what her own research on DESE and bullying.

Attorney Greenspan: we should just clarify to make sure that no actions are taken solely based on an anonymous report. Remove the verbiage, parent and caregiver.

Member Graham to Attorney Greenspan: seeks clarification that under the law, an allegation cannot be brought against anybody but a student or a staff member. What are the active parameters needed to be adhered to?

Attorney Greenspan will confirm and get back with an answer.

Member Ruseau: wants to be clear and asks Attorney Greenspan that the only people who can file bullying complaints are students and staff?

Attorney Greenspan: confirms yes.

Member Ruseau: the form available to the community on the website, parents, caregivers and anybody in the community can't just fill it out to accuse a student or a staff member. Bullying, defined by this law, has a broader meaning and set of situations. The purpose of the forms, process and authority, it's for students and staff.

Attorney Greenspan confirms yes.

Member McLaughlin: parents, caregivers can file on behalf of a student and these complaints must be investigated. She does not know the questions of whether a parent, caregiver or community member can be disciplined by the school. Would like to focus back on the anonymous reporting aspect before moving to discuss the next issue.

Member Ruseau: is confident the anonymous reporting has been covered with respect to a student. Speaks to potential incidents occurring outside of the school environment being a nightmare and wouldn't support that. Not that he doesn't think it should be addressed.

Member McLaughlin: points out the report form is to be found on the website. Continues and points out that a bullying report is different from an anonymous report. Encourages those watching to look on DESE's website for information. Defers to Dr. Cushing, Superintendent and Ms. Bowen.

Dr. Peter Cushing: refers to model forms on the state website, where it does list a parent as someone who can fill out a report. The forms were updated a few years ago without having in-depth conversations. Is of the opinion that 'student or staff member' language would be appropriate and remove parent and caregiver and community members. "We don't have the capacity to get involved other than recommend that a criminal harassment complaint be filed with local law enforcement against those individuals"

Paul D'Alleva: wants to refocus on the false accusation aspect of the document.

Member Ruseau: there is no structure to the document. Asks the question, is anonymous reporting even part of the law? There is no form for an anonymous report.

Attorney Greenspan: confirms it is.

Member McLaughlin: would like to know how we are going to make sure that this is happening? (The plan is reviewed) Thinks it needs to be built into the school calendar.

Member Ruseau: suggests it become part of the Reports & Presentations.

Member Graham: asks for clarification on frequency of updates.

Attorney Greenspan: would like to see it become annual

Member Ruseau would like to keep it every two years as the law requires.

Member McLaughlin: agrees. No motion required

Member Ruseau: reviews the section:

Schools - Each Individual School responsibilities include:

Bullet 2: "This seems very broad and might not be possible the way it is written. This is documenting all unacceptable student behavior and treating these incidents with standard school disciplinary procedures. Perhaps we don't include this. We have other policies that can stand on their own.

Member Graham: would like to remove the word 'All'. Is of the opinion we do want to document instances of unacceptable behavior. Would also like to remove the word 'unacceptable'.

Member McLaughlin: speaks to treating instances with standard school disciplinary procedures:

1. Parent, caregivers need to be notified
2. Recognise there are unique legal requirements and procedures for students with disabilities

Member Graham: Considers this out of the scope for this policy as there are other policies that govern all of those things.

Member McLaughlin: disagrees as people reading the document may not know that other policies exist; would like to see separate bullet items for understanding legal procedure around students with disability and manifestation of disability. She would like to think about student strength-based language and say during documenting incidents of student behavior and treating these incidents with standard school disciplinary procedures as needed.

Member Graham: is fine with removing 'unacceptable' but is not in favor of replicating information across multiple policies. Better to provide a link that references standard disciplinary procedures for students with and without disabilities.

Member Ruseau: good policy should not contain other policies other than a link to them.

Superintendent Edouard-Vincent: this is now the 4th time of meeting; we have legal counsel on the call helping parse through the Bullying document. We should make a concerted effort to reduce the document down to a manageable size, so it is not overwhelming to families and focus on the key pieces in the policy that follow the law. The objective is to have clean policies that people will understand and are easy to translate and digest for all stakeholders. She would like to stick with a few pieces and if necessary, is in favor of creating a separate freestanding policy in support of the document. Many comments need to be tweaked and adjusted.

Member Graham: reminds that she is willing to take a cut at trying to make the document digestible. It is not work that is productive until we have clarity from Attorney Greenspan, which is the purpose of the meeting.

Member McLaughlin: notes for the record there are very different disciplinary procedures for students with disabilities and would like a link 'there'. Also comments that the issue of incident reports to caregivers.

Member Graham: asks for Member McLaughlin to provide her the links for the disability protocol for students with disabilities for the next version of the document. There is no link for an incident report as discussed on the floor.

Member Ruseau: next comment is with regard to bullet 6. Believe it makes more sense to not have it named. Questions if we even need to list the item at all.

Member Graham: asks Attorney Greenspan if this level of detail is required. He responds no.

Member Ruseau: addresses several sections

MPS Bullying & Cyber Bullying and several pages in detail. It's a duplication of the section above. It is eliminated.

Leadership & Plan Development:

- Public Involvement: can be removed from the policy
- Assessing Needs and Resources: is outdated and is deleted.
- Planning and Oversight: deleted

Parent and Community Involvement: the comment is to review and make sure it is still relevant. Attorney Greenspan thinks it is stale.

MPS Health Education Scope & Sequence: it does not belong in the document. Inappropriate for policy considering the specific ban on curriculum and inaccurate. Suggestion is to cut it out.

Superintendent Edouard-Vincent: does not feel it is necessary for what is being done with the document now.

Definition of Bullying: an old definition that requires updating to include school staff. Retaliation - language should be removed and have it stand on its own and not be part of this definition. This will be cut.

Procedures for School Staff Receiving/Witnessing a Report of Potential Bullying Behavior: remove the 'unacceptable' language. The language is vague and again, remove the word 'all'.

Member McLaughlin: we need to include somewhere on the document as to where incident reports are going for family and community engagement. She makes a motion that a segment on incident reports is included on incident reports created and are also shared with caregivers and family members.

Member Ruseau: asks for clarification to this being a conversation that is already being had in the School Committee. It is confirmed it has been agreed upon but not yet assigned.

Dr Cushing: there is a separate policy on incident reports under school committee purview, so is this something that should be reviewed on incident reports as opposed to putting it here.

Member McLaughlin: we should update and review that policy as well. Would like to include it in the next meeting we have and have it combined for the next Rules and Policy meeting. She will present it at the next school committee meeting.

Member Ruseau: reminds that the rules require that any policy that is going to be changed be reviewed and submitted through the full committee. We cannot review another policy here in the subcommittee meeting.

Ms. Bowen: wants clarification within this document; when it talks about incidents, is it referring to bullying incidents specifically or all behavioral incidents. She considers it two separate things. The behavioral incidents Member McLaughlin is talking about is a different form for reporting that we need to provide to parents. She wants to be clear that when we are talking about all incidents it's about bullying incidents within this policy and that there is a section that the parents are informed when a bullying incident is either reported because of their student or that their student is being bullied and that the investigation. They then get the results of the bullying investigation. She wants to make sure that she's thinking the correct way with this.

Member Ruseau: what he is hearing Ms. Bowen say is this policy is about bullying. It's not about all incidents that happen in school and making sure we stay focused on that part seems important.

Bullet 3: does not seem to meet the definition. It seems like a prescreening process and is not sure DESE would approve of this based on recent PRS findings. We may want to consider revising this procedure. It also needs to be the same as the school committee policy and student handbook procedures for everything to need to be checked for consistency. We don't want to have it in our policy that some individual is going to look at it and decide for themselves that this is not going to go through the process. The language does not seem to meet the definition.

Attorney Greenspan: yes, correct and confirms striking this section.

Member Ruseau: continues

Administrative Investigations:

Principalities: need to talk about that

Response Plan: We can require outside counseling; the district will pay for it unless the student has been charged with a felony or expelled, in which case we can require parents sponsor counseling.

Attorney Greenspan says to remove it as it doesn't apply.

If the student has an IEP, work with his or her liaison to determine whether the behavior is the manifestation of the student's disability. This is only required if the student is removed from the school for more than 10 days. He would advise the state notify the liaison, who may want to reconvene the team.

Attorney Greenspan wants to defer to Joan on this too.

Member McLaughlin: it's IEP or 504. Agrees with Attorney Greenspan that it's 10 days or a pattern of removal. Defers to Ms. Bowen on the specifics as it does get very nuanced. Somebody else needs to be involved that understands this better, whether it's the Director of Student Services or the attorney.

Member Ruseau: modifies this accordingly.

Notify the Aggressor of his or her right in the process to appeal the decision. There is no appeal process in the law. Asks if we strike #10.

Attorney Greenspan: agrees

Member McLaughlin: There is no appeals process however there are other procedural safeguards. There is potentially the Office of Civil Rights and wants to be clear ... and maybe we have Ms. Bowen answer this too.

Ms. Bowen: is not sure those would be connected. Is not clear of what #10 is asking or saying

Member Ruseau: clarifies his understanding.

Attorney Greenspan: there is no appeal and queries how far we go to notify outside agencies of complaints. We are not obligated to tell them.

Member McLaughlin: we can put a link there. We do need to notify families of procedural safeguards. If there is a bullying incident that does involve a student with a disability and the bullying decision has been found unfounded in the district by the district personnel, to say there's no appeal is not accurate. Defers to Attorney Greenspan who defers to 'them' on this. Asks Ms. Bowen that, through the chair, Member Ruseau, if we can have the Director of People Services to reach out to our special education representatives to clarify this question or issue, so that we are clear that when we are telling people there is no right to appeal the decision, that we need to be accountable for that. The other issue is if the decision is found to be not bullying, then what, as we have not put that in the document and what does that actually mean if there is no appeal. These are the two issues she is trying to respond to.

Member Ruseau: points out this is addressed two pages down in the notification section.

Member Graham to Attorney Greenspan: are you saying the law does not require an appeal process or are you saying the law prohibits an appeal process? Does the law say we can't have one?

Attorney Greenspan: confirms there is no appeals process within the district to this finding. If we are going through all these steps, why and what is it (the appeal) going to be for - who?

Member Graham: speaks to many families who have vehemently disagreed with the process as they have gone through as they have filed bullying complaints and there is no process beyond what the principal may find or not find to be having a continuing conversation with the superintendent, who is the appeals officer. If we are going to be taking bullying as seriously and say there is no appeal process. There needs to be a pathway that rise to the level of the superintendent.

Member Ruseau: agrees and shares that some of this is education and communication. The law is clear, there is no such thing as a one time incident - it does not exist. The law has the word 'repeated' ..and without 'repeated' it is not bullying and is not part of this policy. He does not think that incidents resulting in disciplinary action can't happen. One cannot fill out a bullying form and think you're going to get a determination of bullying when it's a one time thing.

Member Graham: speaks to the stories she hears of repeated, consistent, persistent issues where still no bullying finding has been issued.

Member Ruseau: agrees this is obviously a problem.

Member Graham: would like to see some sort of centralized accountability path that gives a feeling of real reassurance and consistency that we can have with 7+ people being the kings of their kingdom and interpreting this policy any which way they might.

Attorney Greenspan: wouldn't want (is hesitant to) to make an off-the-cuff decision on the appeal process. Will it be a De Novo appeal - that is, that whoever is going to review this is going to go through everything again.

Member Ruseau: this is a different conversation we do have to have or at least the superintendent has to have. Recognises there are repeated instances that are continuously determined to not be bullying. This should cause incredible alarms. These are not school committee alarms - those are supervision alarms, from the superintendent to the principals. Questions if there is a way to put this into policy.

Member McLaughlin: recommends putting PRS in parentheses as it's the same comments - when the bullying investigation takes place and the flowchart is followed, there are pieces to be looked for to make the differentiation between bullying or is it a disciplinary incident. Sometimes interpretation differs. She wants to point out that there are some students in the district that may need additional supports based on their specific learning needs. All the administrators received specialized training around bullying to understand what it is that administrators can legally do. Does not want to have blanket statements written into a policy and have other documents or pieces of information that aren't going to be taken into consideration. Wants us to be careful that we are not trying to over legislate this bullying policy. We need to be clear that this particular document is specifically about bullying and what the law says. We are doing our best to follow the law. If there are disciplinary incidents which don't rise to the level of bullying then they're going to be handled as a disciplinary offense, a disciplinary incident. There are limitations when we're dealing with discipline. We have to follow the law with all students.

Member Graham: all students deserve a pathway like anybody else. Does understand we have to comply with the law. Is of the opinion that the school committee does have the authority to say there needs to be a pathway and parents do need to know they have a pathway. We should make it clear to parents that if you disagree with the findings, email the superintendent to discuss it - it could be as easy as that. It is our job to set policy that does protect all students. What we can do is outline what we think is effective from a policy perspective.

Member McLaughlin: concurs with Member Graham. It's important that we lay out a process.

Member Ruseau: confirms he is putting that into the notes

Disciplinary Actions: Expulsion and terminations to be removed.

Remedial Actions: this is not standard for referral.

Notification: confidentiality remains in both directions. Administrators may only share information with the permission of students. This is not accurate and is removed.

Documentation: 1.c this is not correct and we will get the correct and replace this language. The chart is very unclear

Problem Resolution System: now called the PQA.

Member McLaughlin: recommends putting PRS in parentheses as it's the same

Access to Resources and Services:

Member McLaughlin: points out it is the same as the appeals process. This is what she and Member Graham were asking to put this (PRS and or OCR) into the document. Seeking assistance outside of the district can be done through PRS and or OCR. These are the procedural safeguards referenced earlier.

Member Ruseau: this section will be fleshed out and would appreciate receiving any emails with additional language.

Superintendent Edouard-Vincent: if we add the language that Member McLaughlin added regarding students with disabilities, we need to leave the IEP and 504 language in there, because there are students that are on IEP/504 where self regulation may be listed as a disability. Those students are entitled to additional protections according to their IEP. There are some things that we need to keep in mind - legally we need to take into consideration. If we don't take these into consideration, the district is liable and at fault for not following the IEP/504 plan.

Member Ruseau: the next section is a bunch of pages down. We need to update the definition to match the definition.

Attorney Greenspan: from notes; remove repeat offenders language

Member Ruseau: will share a version of the document with everybody, which has these notes. We will have one more meeting to review a document we can send to the whole committee. He will send a doodle poll shortly to identify a date.

Member Graham: wants to clarify the committee wants her to go through the document once she receives the cleaned up document from Member Ruseau.

Member Ruseau: confirms

***Motion to adjourn by Member Graham; seconded by Member McLaughlin.
Motion carries 3/0***

Meeting adjourns: 5:56p